

25NWCV02644 25NWCV02644

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CR%2C07%2F01%2F2026

Source SHA-256: 547f739286a5d7731f3347d890c7e92018205440778bfede5669e9b4728aa9dc

Case Number: 25NWCV02644 Hearing Date: July 1, 2026 Dept: R

#11

DELGADO v. CITY OF
HUNTINGTON PARK, ET AL.

CASE
NO.: 25NWCV02644

HEARING:
Wednesday, July 1, 2026, at 9:30 AM

Defendant
CITY OF MAYWOOD's Motion for Order to Authorize Plaintiff's Phone Records is GRANTED.

Moving party to give notice.

Background

On July 21, 2025, Plaintiff DANIEL DELGADO
("Plaintiff") filed this premise liability case against Defendants CITY OF
HUNTINGTON PARK; CITY OF MAYWOOD ("City"); and DOES 1 to 100, inclusive.

Plaintiff's Complaint asserts the following causes
of action:

(1) Dangerous Condition of Public Property;

(2) General Negligence; and

(3) Premises Liability

City

issued a subpoena to T-Mobile requesting the following information: (1) calls initiated or received; (2) text messages sent or received; (3) data usage; and (4) location data; on October 15, 2024, at 10:00 pm through October 16, 2024, at 5:00 a.m. Plaintiff stipulated to the production of his mobile records and signed an authorization for their production. (Valencia Decl., ¶¶ 3, 4.)

Third-Party Subpoena

Under Code of Civil Procedure section 2020.210, subdivision (b), an attorney of record for any party may sign and issue a deposition subpoena. Under section 2020.430, subdivision (a), if a deposition subpoena commands only the production of business records for copying, the custodian of the records or other qualified person shall deliver both a true, legible, and durable copy of the records, and an affidavit authenticating the copies and records.

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, the Court may make an order directing compliance. (CCP § 1971(a).)

Here,

City issued a subpoena to T-Mobile and Plaintiff did not object. City's motion is GRANTED.

T-Mobile shall release the following records:

(1) Calls initiated or received;

(2) Text messages sent or received;

(3) Data usage;

(4) And location data including but not limited to geo locations, cell phone tower data, and any other data that would identify the location of the phone during this period.

These records shall be limited to the period of
October 15, 2024, at 10:00 p.m. to October 16, 2024, at 5:00 a.m. These records
shall be produced within 10 days of the Court's issuance of this Order.